

Subject: TIP WG : some ideas
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To: Arne Krüger, Jens Hoheisel, Riccardo Priore, Gian Marco Sirtori
Attachments: image001.png, image002.png

Dear all,

I promised some ideas for the TIP WG, here is one.

Some years ago, at INPI in Strasbourg we implemented a process to profile patent applicants in Alsace, the extreme east region of France, close to the German folks (they also eat choucroute and drink beer).

This process was very tiiiime consuming, even if in a later stage we improved it a bit; at the beginning we used Espacenet, and the game was to search the patent portfolio of all the companies in Alsace and the related country coverage. Fortunately, I could involve an intern on this, for 6 months. We later used the data from our data dep (at INPI), which data essentially come from Patstat.

The result :

• Familles / extensions territoriales

	1 seule famille	2 familles	3-4 familles	5-10 familles	10-20 familles	20-50 familles	> 50 familles
1_FRonly	112	92	12	3	4	1	0
2_FR+EP	87	48	13	18	7	0	1
3_FR+EP+1	29	17	5	1	4	2	0
4_EPUSASie	42	14	9	8	5	1	2
5_ALL	13	5	0	1	3	3	1








The figures in the table correspond to a number of companies : as an example, 9, in the left part, means that we have in Alsace 9 companies which, over a 5 year period of time, filed 2 families (we used the oldest priority date), and that at least one of these 2 families covers the FR or EP jurisdictions, a jurisdiction in north-america, and one or more jurisdictions taken from CN, JP and KR. In other words, we have a patent policy covering the 3 main economic zones : Europe, North-America, and Asia.

In this table, companies are grouped according to 2 criteria

- Number of families produced over a 5-year period of time (1, 2, 3-4, 5-10)
- And the country coverage : only France, FR+EP, (FR or EP)+(Asia or North America), (FR or EP)+Asia+North America, (FR or EP)+JP+CN+KR+North America

The cells were grouped to form 6 main categories (symbolized by animals)

- Lobster : limited number of families, covering only France
- Lemur : bolder people going beyond the FR border, covering also EP, but limited number of families
- Antelope : limited number of families but broad or very broad country coverage
- Hippo : larger number of families but coverage limited to FR and / or EP
- Lion : broad country coverage, large number of families
- Zebra : intermediary category between antelope and Lion

Why did we do that ? because trying to sell shampoo to a bald man is risky.

We wanted to promote an average/high level IP training, dedicated to businesses having started to implement an IP policy.

We wanted to avoid losing our time contacting folks unlikely to answer positively to our offer; and statistically, our best chance of success was to contact antelope, hippo or zebra.

Lions are more likely to be partners for us, the company having a robust IP policy, we can invite them as a speaker in a workshop for example.

About 4 years ago, we started using data coming from Patstat, which resulted in some improvements in our analysis.

As an example, Patstat provides the data related to NZ, South America, AU, we therefore slightly modified the categories in relation with the country coverage.

We also run the analysis over a 6 (not 5) year period of time. The switch from 5 to 6 was inadvertently introduced. The advantage to analyze a 5- or 6-year period of time is that it permits to damp the irregularity which characterizes the filing behavior of SMEs.

It seemed also interesting to identify those French companies filing their first application at EPO, and not at INPI; or those ones which did not file any application for 5 years, and suddenly file one or more during the last year considered.

This resulted in an Excel file like this :

NOM	Entreprise	VILLE	Régularité	EP_Dir	Calcul New	New	Total Famille	Total INPI	Total EP	Am Nord	Am Sud	Am Centrale	Océanie	Afrique	Asie	AmNord/Asie	Am/Océanie
EXEL INDUSTRIES	ETI	EPERNAY	6	INPI&OEB	0 -		127	110	17	53	2	0	8	0	61	114	
HAGER ELECTRO SAS	GROUPE ET FILIALE	OBERNAI	6	INPI&OEB	0 -		66	51	15	0	0	0	3	0	4	4	
KUHN SAS	GROUPE ET FILIALE	SAVERNE	6	INPI	0 -		49	49	0	18	6	0	7	0	5	23	
CERA APS	ETI	REIMS	2	INPI	0 -		44	44	0	6	0	0	0	0	10	16	
BHG	ETI	ATTENSCHWILLER	6	INPI	0 -		31	31	0	0	0	0	0	0	0	0	
CONSTELLUM NEUF BRISACH	GROUPE ET FILIALE	BIESHEIM	6	INPI&OEB	0 -		30	25	5	16	0	0	0	0	11	27	
SOCOMECH	ETI	BENFELD	6	INPI	0 -		23	23	0	12	3	0	3	0	6	18	

For each company we have

- The name
- The type of company (SME, group, intermediary sized company)
- The region and the city
- EP_Dir : filing first at INPI and / or EPO
- New : a filing during the last year considered, no filing before
- Then several columns with the total number of filing over the analyzed period before the various jurisdictions
- First colored columns : country coverage profile
- Then 3 columns related to the “animal” profile over the 3 analyzed periods : 2017-2022, 2016-2021, 2015-2020, which allows to notice the evolution of the patent policy over time (we do not have the more recent 6-year periods as due to cuts in our resources we could not run the analysis for these periods).

Limitations of the analysis : we account for

- The direct FR applications (first application in relation with an invention filed at INPI); plus the related family members
- The direct EP applications, but without the related family members
- Which means that we do not have the direct filing before WIPO, USPTO or other offices, and the related families. This introduces a flaw, as in some technologies, french companies file directly at USPTO for example.

What do we need to perform such an analysis

- The ZIP code of the applicant address
- All the first filing and the related families.

Complementary information : the INPI data dep could add the French company registration number to this table; this requires a pretty demanding work. They also manage to avoid duplicates.

What I wonder : with Claude and Patstat (accessible via the TIP), wouldn't it be possible to optimize the process ? do we have the necessary data via TIP ?

Arne and Jens : I actually presented that work in 2018 in Ilmenau. It was a bit of a scary experience for me as I had decided to present in German but I was happy because my chairman was Peter Kallas, not retired at that time ☺.

Sorry for this long e-mail, but at least you have all the necessary details.

In a next e-mail, I will discuss possible extensions to this work.

Best.

Philippe